

24CMCV00806 24CMCV00806

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-23

Motion: PLAINTIFF'S MOTION TO CONTINUE TRIAL

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Case Number: 24CMCV00806 Hearing Date: June 23, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JAMES KIM,

Plaintiff,

vs.

SOON

GOO HONG, et al.,

Defendants.

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CASE NO: 24CMCV00806

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO CONTINUE TRIAL

Dept.

A

DATE:

June 23, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 05/30/2024

TRIAL:

08/10/2026

MOVING PARTY: Plaintiff

James Kim

RESPONDING PARTY: None

1.

Background

This is an action for breach of contract.

Plaintiff James Kim ("Plaintiff") alleges that on October 28, 2020, he and

defendants Soon Goo Kong and Pacific Lighting Manufacturer, Inc., as well as Eun

Young Hong and Bo Hi Hong as alter egos of Pacific Lighting, Manufacturer, Inc.

(collectively, "Defendants") entered into an agreement whereby Plaintiff agreed

to lend \$780,000 to Defendants on an interest rate of 18% per annum. Plaintiff

alleges that Defendants defaulted on the loan and failed to pay not less than \$700,000.

Plaintiff alleges that in the performance of the agreement, he issued checks

payable to defendants Eun Young Hong, Bo Hi Hong, and Eunyoung Electric

Corporation. Plaintiff alleges that defendants Soon Goo Hong, Eun Young Hong,

and Bo Hi Hong are alter egos of defendant Pacific Lighting Manufacturer, Inc.

2.

Discussion

Plaintiff moves to continue trial in this action at least six months. Plaintiff contends that his counsel has withdrawn and that defendant Pacific Lighting Manufacturer, Inc. is currently in bankruptcy. No parties have opposed this motion.

Although

continuances of trials are disfavored, each request for a continuance must be considered on its own merits. (Cal. Rules of Court, rule 3.1332(c).) The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance. (Ibid.) Good cause includes the unavailability of an essential lay or expert witness, party, or trial counsel; “the substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;” the addition of a new party; a party’s excused inability to obtain evidence; or a significant, unanticipated change in the case. (Ibid.)

Furthermore,

the Court may look to the following factors in determining whether a trial continuance is warranted:

“(1) The

proximity of the trial date;

(2) Whether

there was any previous continuance, extension of time, or delay of trial due to

any party;

(3) The length

of the continuance requested;

(4) The

availability of alternative means to address the problem that gave rise to the

motion or application for a continuance;

(5) The

prejudice that parties or witnesses will suffer as a result of the

continuance;

(6) If the

case is entitled to a preferential trial setting, the reasons for that status

and whether the need for a continuance outweighs the need to avoid delay;

(7) The

court's calendar and the impact of granting a continuance on other pending

trials;

(8) Whether

trial counsel is engaged in another trial;

(9) Whether

all parties have stipulated to a continuance;

(10) Whether

the interests of justice are best served by a continuance, by the trial of the

matter, or by imposing conditions on the continuance; and

(11) Any other

fact or circumstance relevant to the fair determination of the motion or

application.”

(California

Rules of Court, rule 3.1332(d)(1)-(11).)

Plaintiff’s counsel withdrew from

representation on April 30, 2026. Plaintiff contends that he has been unable to

find counsel as of the date of filing of this motion, May 28, 2026, and

anticipates being able to find counsel within one or two months. Trial in this

action is currently set for August 10, 2026.

Plaintiff also contends that he has been

unable to pursue discovery in this action because defendant Pacific Lighting

Manufacturer, Inc. is currently subject to a bankruptcy stay, and other

defendants have been sued in their capacity as owners and officers of defendant

Pacific Lighting Manufacturer, Inc.

Based on Plaintiff’s contentions and the

ongoing bankruptcy stay, the court finds that it would be inappropriate to hold trial in this matter excluding defendant Pacific Lighting Manufacturer, Inc., as would be necessary if trial were to be held during the duration of the bankruptcy stay. The court will therefore, on its own motion, take trial in this action off calendar. Plaintiff's motion to continue trial is moot.

3.

Conclusion

Based on the

foregoing, the court DENIES Plaintiff's motion to continue trial. The July 31,

2026 Final Status Conference and August 10, 2026 trial in this action are vacated. The court sets a Status Conference re Bankruptcy for December 1, 2026, 8:30 a.m. in Dept. A.

The court directs the clerk to give notice.

DATED: June 23, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court